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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**OPPOSITION TO MOTION TO
STAY PENDING INTERLOCUTORY
REVIEW**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State hereby opposes Defendant's motion to stay these proceedings pending his latest petition for appellate review of an interlocutory order.

INTRODUCTION

This Court should not grant Defendant a *de facto* additional continuance of the preliminary hearing beyond that which the Court already granted, merely because Defendant seeks discretionary appellate review of the Court's order on electronic media coverage. Defendant has not satisfied any of the three elements for obtaining a stay. Defendant cannot show that a stay is necessary to prevent additional prejudice from media

coverage of his preliminary hearing, when this Court has already found that he failed to show that a public preliminary hearing would prejudice him at all. Defendant therefore has not shown that any harm to him outweighs the harm that additional delay will cause the State and the victim representative. Nor can Defendant show that he is likely to prevail on appeal (assuming one is granted), or that a stay is not adverse to the public interest in the prompt disposition of criminal trials.

Moreover, there is no need for this Court to stay the proceedings pending disposition of the petition for interlocutory appeal. If the Utah Supreme Court concludes that such a stay is warranted, that court can stay the proceedings. Indeed, it is in the best position to determine whether a stay is warranted under the rules.

FACTS

1. On May 8, 2026, this Court entered an order granting Defendant's motion to continue his preliminary hearing and rescheduling the hearing from the week of May 16, 2026, to the week of July 6, 2026. *See* Dkt. # 534.

2. Also on May 8, 2026, this Court entered an order denying Defendant's motion to prohibit any further electronic media coverage of these proceedings. *See* Ruling and Order on Defendant's Motion to Exclude Still Photographers, TV Cameras[,] and Microphones from the Courtroom (Docket 305) and Standing Order on Electronic Media Coverage Requests ("Cameras Order"). *See* Docket # 535.

3. Defendant has filed a petition for permission to appeal the Court's interlocutory Cameras Order. *See* Docket # 559.

4. On June 1, 2026, this Court entered an order denying Defendant’s motion to close portions of his preliminary hearing and seal preliminary hearing exhibits. *See* Ruling and Order Denying Defendant’s Motion In Limine to Close Portions of the Preliminary Hearing Testimony and Seal Preliminary Hearing Exhibits (“Order Denying Closure”). *See* Docket # 563.

5. The Court concluded that Defendant had failed to demonstrate “a realistic likelihood of prejudice” necessary to justify closure. Order Denying Motion to Close at 2. This was so, because “much of the evidence” that the State intends to introduce “is already in the public arena.” *Id.* The Court further concluded that Defendant had not demonstrated “that no less restrictive alternatives [to closure] remain available.” *Id.*

6. The victim representative in this case has asserted her right to a speedy trial. *See* Docket # 317.

ARGUMENT

Defendant has not satisfied any of the three elements required for obtaining a stay.

Stays in criminal cases other than those “in which the defendant has been sentenced ... are governed by” rule 8 of the Utah Rules of Criminal Procedure. *See* Utah R. App. P. 8(d). To justify a stay pending the potential appeal of an interlocutory order in this case, Defendant must demonstrate:

(A) a likelihood of prevailing on appeal;

(B) a likelihood of irreparable harm to the movant outweighing the harm to any other party; and

(C) the stay is not adverse to the public interest.

Utah R. App. P. 8(c)(2). Defendant must satisfy all three elements. *See id.* He hasn't satisfied even one. In fact, he ignores this rule.

Taking the second element first, Defendant hasn't established that he will suffer any irreparable harm from electronic media coverage of the preliminary hearing, let alone a likelihood that this merely alleged harm outweighs the harm to any other party. This Court's conclusion that Defendant failed to demonstrate a realistic likelihood of prejudice to justify closing his preliminary hearing undermines his claim that electronic media coverage of that hearing will irreparably prejudice his right to a fair trial, especially where most of the evidence that will be presented is already in the public arena. In contrast, the State and the victim representative will likely incur substantial harm.

Nor has Defendant shown that he will likely prevail on appeal. This Court correctly concluded that it must evaluate requests for electronic media coverage on a request-by-request basis. And this Court established a procedure for evaluating those requests that is more generous than the procedure the governing rule provides.

Finally, Defendant hasn't even addressed, and therefore hasn't shown, that a stay is not adverse to the public interest. On the contrary, a stay would substantially undermine the public's interest in the prompt disposition of criminal cases.

- A. Where Defendant previously failed to show that a public preliminary hearing will prejudice his right to a fair trial, Defendant has not shown that he will suffer any harm, let alone irreparable harm, from media coverage of his preliminary hearing; nor has he shown that his alleged harm outweighs the harm that further delay would cause the State and victim representative.**

1. Defendant has not shown that media coverage of his preliminary hearing will create irreparable harm.

Defendant's request for a stay is grounded in the faulty premise that electronic media coverage of the upcoming preliminary hearing will "inevitably" prejudice his right to a fair trial. Mot. at 4; *see also id.* at 5 (if electronic media coverage continues, prejudice "will continue and will be compounded"). But this Court has already concluded that Defendant has not shown that he will suffer any prejudice if the Court allows the public and the press access to his preliminary hearing. *See* Order Denying Closure at 1-2. That ruling necessarily undermines Defendant's entire basis for a stay.

The Court's ruling made clear that Defendant failed to overcome the presumption that court proceedings, including preliminary hearings, should be open to the public and press. *See id.* Defendant did not demonstrate that such access posed a "realistic likelihood of prejudice to a fair trial." *Id.* at 1. Nor did Defendant demonstrate the requirement that there were "no less restrictive alternative means to ensure the integrity and impartiality of the jury." *Id.* Defendant failed to make these showings, in part, because "much of the evidence" the State will present at the preliminary hearing "is already in the public arena." *Id.* at 2. Under these circumstances, Defendant has not shown that electronic media coverage of his upcoming preliminary hearing will prejudice his right to a fair trial and therefore require a stay pending possible appellate review.

Indeed, the U.S. Supreme Court has made clear that the “prominence” of a case in the media’s eyes “does not necessarily produce prejudice, and juror *impartiality* ... does not require *ignorance*.” *Skilling v. United States*, 561 U.S. 358, 398 (2010) (citing *Irvin v. Dowd*, 366 U.S. 717, 722 (1961); *Reynolds v. United States*, 98 U.S. 145, 155-56 (1879)). Jurors “need not enter the box with empty heads in order to determine the facts impartially.” *Id.*

Thus, at this point, any threat of prejudice that electronic media coverage of the preliminary hearing might pose to Defendant’s right to a fair trial is merely speculative and not irreparable. As the United States Supreme Court held in *Nebraska Press Ass’n v. Stuart*, 427 U.S. 539, 554 (1976), that “pretrial publicity[,], even pervasive, adverse publicity[,] does not inevitably lead to an unfair trial.” The Court further recognized that predictions about the impact of pretrial “publicity on prospective jurors [*is*] of necessity speculative, dealing ... with factors *unknown and unknowable*.” *Id.* at 563 (emphasis added).

Moreover, as this Court has recognized, it possesses a robust toolbox to avoid any potential prejudice from pretrial publicity. Order Denying Closure at 2. If, by the time of trial, the jury pool contains individuals whose exposure to pretrial publicity is likely to have impaired their ability to be impartial, “the regular, time-honored processes for selecting jurors,” including enlarging the venire, conducting “thorough and searching voir dire,” and using “a detailed jury questionnaire” all exist to screen out that juror. *See State v. Allgier*, 2011 UT 47, ¶ 19, 258 P.3d 589. Given these procedures, Defendant has not shown and cannot show that any potential prejudice from media coverage of his preliminary hearing creates “a likelihood of *irreparable* harm.” Utah R. App. P. 8(c)(2) (emphasis

added); *see also Nebraska Press Ass’n*, 427 U.S. at 569 (reversing a prior restraint on pretrial publicity where there was no showing that “further publicity, unchecked, would so distort the views of potential jurors that 12 could not be found who would, under proper instructions, fulfill their sworn duty to render a just verdict exclusively on the evidence presented in open court”).

2. Delay will likely harm both the State and the victim representative.

In contrast to Defendant’s inability to show any irreparable harm, the harm that delay will likely cause the State and the victim representative is substantial. “Delay is not an uncommon defense tactic” because “as the time between the commission of the crime and trial lengthens, witnesses may become unavailable or their memories may fade. If the witnesses support the prosecution, its case will be weakened, sometimes seriously so.” *Barker v. Wingo*, 407 U.S. 514, 519-21 (1972). Delay also impacts the victim’s (and Defendant’s) speedy trial rights, the perception of legitimacy of the justice system, and creates a void of information which fosters distrust and baseless speculation. *See U.S. v. Bert*, 814 F.3d 70, 83 (2d. Cir. 2016); *see also* Kat Albrecht, Maria Hawilo, Meredith Martin, & Thomas Geraghty, *Justice Delayed: The Complex System of Delays in Criminal Court Justice Delayed: The Complex System of Delays in Criminal Court*, 53 Loy. Univ. Chi. L. J. 747, 789 (2022) (“It is well-understood that delay can help defendants in their cases. Witnesses’ memories may fade; the witness may lose interest or become unavailable to testify against the defendant.”). Indeed, early on in this very case, the defense acknowledged their desire for a lengthy criminal trial process: “This case is probably going

to last a long time, *hopefully*.” Transcript of Sealed Motion Hearing, Oct. 24, 2025, at 16 (Kathryn Nester) (emphasis added).

Delay will also significantly harm the victim representative’s right to a speedy disposition. The victim representative has asserted her right to a speedy trial. *See* Dkt. # 317. While the victim representative is not a party to this case, she has a constitutional right “[t]o be treated with fairness, respect, and dignity,” as those rights are “defined by law.” Utah Const. art. I, § 28(1)(a). The Legislature has defined those general constitutional rights to include “the right to a speedy disposition of the charges free from unwarranted delay caused by or at the behest of the defendant.” Utah Code § 77-38-7(2). This Court is statutorily bound to consider the victim representative’s right to a speedy disposition, even though the victim representative is not an actual party to this case. *See id.* (“In determining a date for any criminal trial or other important criminal or juvenile justice hearing, the court shall consider the interests of the victim of a crime to a speedy resolution of the charges under the same standards that govern a defendant’s ... right to a speedy trial.”). *Id.* § 77-38-7(1). Unwarranted delay in this case necessarily impairs this right.

Given Defendant’s empty side of the balance, and the significant harm that unwarranted delay poses for the State and the victim representative, Defendant has not shown that the balancing of relative potential harms weighs in his favor. *See* Utah R. App. P. 8(c)(2)(B).

B. Defendant has not shown that he is likely to succeed on appeal, even if one is granted.

Nor has Defendant shown the first element for obtaining a stay—a “likelihood of prevailing on appeal.” Utah R. App. P. 8(c)(2). At this point, an appellate court may not even grant appellate review. “The decision to grant a petition for interlocutory appeal is discretionary.” *Houghton v. Dep’t of Health*, 2008 UT 86, ¶ 14, 206 P.3d 287.

Even if the Utah Supreme Court granted interlocutory review, this Court correctly concluded that it must evaluate requests for electronic media coverage on a per-request basis. *See* Camera’s Order at 7-8. The controlling rule creates “a presumption that electronic media coverage by a news reporter shall be permitted in public proceedings” when such a request is made “predominat[ly]” for journalism purposes. Utah R. Jud. Admin. 4-401.01(2)(A). The rule allows a court to restrict electronic media coverage “in those cases.” *Id.* But only if “the reasons for doing so are sufficiently compelling to outweigh the presumption.” *Id.* If a court rejects or limits a request for electronic media coverage, it must make “particularized findings,” *id.* 4-401.01(2)(C), “relate[d] to the specific circumstances of *the proceedings*,” *id.* 4-401.01(2)(D) (emphasis added).

As this Court recognized, these provisions require a court to evaluate each request for electronic media coverage individually. The phrase “in those cases” refers not to an entire criminal or civil case. *See id.* 4-401.01(2)(a). Rather, it refers to those cases, or circumstances in a criminal or civil case, when a (1) news reporter, (2) makes a request for electronic media coverage, of (3) a public proceeding, (4) predominately for journalism or dissemination of news. *See id.* 4-401.01(2)(A). A case may include both public and private

proceedings. A court must therefore evaluate whether the specific request for media coverage relates to a public proceeding in the case and whether the request is made by a proper person and for a permitted purpose. *See id.* The requirement that a court make “particularized findings” about the “specific circumstances of the proceedings” that justify denying or restricting a request reinforces the conclusion that a court must evaluate each separate request. *See id.* 4-401.01(2)(C) & (D). The Court therefore correctly interpreted the governing rule.

Nor did the Court create an unworkable procedural framework for challenging a request for electronic media coverage. Defendant’s assertion to the contrary ignores the more restrictive framework that the governing rule creates. *See Mot.* at 6-7. Allowing fourteen days’ notice to the parties of a media request is significantly more generous than the “one business day” the rule requires. *See Utah R. Jud. Admin.* 4-401.01(2)(A). In fact, the rule even gives the Court discretion to “grant a request on shorter notice.” *See id.*

The Court’s framework provides the parties generous notice of, and an opportunity to be heard on, requests for electronic media coverage. These are the core guarantees of procedural due process. *See In re Adoption of B.Y.*, 2015 UT 67, ¶ 16, 356 P.3d 1215 (“At its core, the due process guarantee is twofold—reasonable notice and an opportunity to be heard.”) (citing *United States v. James Daniel Good Real Prop.*, 510 U.S. 43, 48 (1993)).

Defendant does not explain how the Court’s framework is inadequate to challenge a request for media coverage of a particular proceeding, especially when Defendant can presumably continue to rely on the evidence and argument that he has already submitted to the Court to support his blanket challenge to electronic media coverage. Rather,

Defendant's argument rests entirely on a conclusory statement that this Court's more generous framework for challenging electronic media coverage is inadequate. Mot. at 7.

Finally, Defendant's assertion that he lacks a remedy for an erroneously granted request for media coverage directly conflicts with *Chandler v. Florida*, 449 U.S. 560, 575 (1981) (rejecting claim that electronic media coverage of defendant's trial would violate due process). As the *Chandler* court explained, "the appropriate safeguard" against the potential prejudice from pretrial publicity "is the defendant's right to demonstrate that the media's coverage of his case—be it printed or broadcast—compromised the ability of the particular jury that heard the case to adjudicate fairly." 449 U.S. at 575.

Because Defendant demonstrates no error in this Court Camera's Order, he has not shown that he is likely to prevail on appeal.

C. Defendant has not shown that a stay is not adverse to the public interest.

Finally, Defendant ignores, and therefore fails to satisfy, the third requirement for obtaining a stay—a showing that "the stay is not adverse to the public interest." Utah R. App. P. 8(c)(2)(C). "[T]here is a societal interest in providing a speedy trial which exists separate from, and at times in opposition to, the interests of the accused." *Barker v. Wingo*, 407 U.S. 514, 519 (1972). The public interest in speedy disposition of criminal trials furthers several important considerations. *See id.* It helps prevent "a large backlog of cases in urban courts which, among other things, enables defendants to negotiate more effectively for pleas of guilty to lesser offenses and otherwise manipulate the system." *Id.* It also helps to prevent further crimes by defendants who are released on bail. *See id.*

“Finally,” the public has an interest in the prompt disposition of criminal proceedings because “delay between arrest and punishment may have a detrimental effect on rehabilitation.” *Id.*; *see also*, *United States v. Rodriguez*, 497 F.2d 172, 175 (5th Cir. 1974) (recognizing “the public interest in the quick, efficient functioning of the criminal justice process”). “The public interest in prompt trials embraces not only the concern for maximizing the deterrent effect of criminal sanctions, but also the concerns for preservation of proof, and minimizing the risk that pending trial the accused may commit other crimes, flee or threaten witnesses.” *United States v. Clendenen*, 526 F.2d 842, 847 (5th Cir. 1976).

Granting further delay here is directly adverse to the public interest. Defendant therefore has not satisfied any of the three elements for obtaining a stay pending potential appellate review. *See* Utah R. App. P. 8(c)(2).

D. Defendant’s authority does not support his stay request.

Defendant’s reliance on *Hollingsworth v. Perry*, 558 U.S. 183 (2010) (per curiam), to support his stay request is misplaced. Mot. at 5. *Hollingsworth* is easily distinguishable.

The *Hollingsworth* court granted a stay of an amendment to a local federal court rule that had previously prohibited the broadcasting of federal court proceedings. *Id.* at 709. The Court concluded that a stay was warranted primarily because the lower court failed to follow the required procedure for amending its local rules. *See id.* at 190-91 (“the District court likely violated a federal statute in revising its local rules”). While the applicants for a stay were required to show “a likelihood that irreparable harm will result from the denial of a stay,” *id.* at 190, that showing was not the driving factor in determining that a stay was appropriate, *id.* at 189. Rather, the Court made clear that it was not ruling on the general

appropriateness of electronic media coverage. *See id.* “We do not here express any views on the propriety of broadcasting court proceedings generally.” *Id.* “Instead,” the Court expressly “confined” its review “to a narrow legal issue: whether the district Court’s amendment of its local rules to broadcast this trial complied with federal law.” *Id.*

Which leads to the second basis for distinguishing *Hollingsworth*; it arose in a system that, unlike Utah and many other states, has instituted a presumption *against* electronic media coverage. *See id.* at 184 (observing that the rule “had previously forbidden the broadcasting of trials outside the courthouse in which a trial takes place”); *id.* at 193 (“In 1996, the Judicial Conference of the United States adopted a policy opposing the public broadcast of court proceedings.”). The Utah judiciary, on the other hand, carefully studied the potential benefits and risks of electronic media coverage and, as noted, created a presumption favoring such coverage. *See* Utah R. Jud. Admin. 4-401-01(2)(A). *Hollingsworth* therefore does not support Defendant’s request for further delay here.

E. A stay is warranted only if the Utah Supreme Court grants review of this Court’s interlocutory order.

Finally, there is no need to stay these proceedings unless and until the Utah Supreme Court grants review of this Court’s Cameras Order. And at that point, the Utah Supreme Court could itself grant a stay if it concluded that Defendant had met the requirements of Rule 8(c)(2). *See* Utah R. App. P. 8(a)(1) (“A party may move the appellate court for the following relief pending appeal or pending disposition of a petition under Rule 5 or Rule 19).

Moreover, Defendant’s suggestion that the Utah Supreme Court cannot expeditiously resolve his petition for interlocutory appeal is misleading. *See* Mot. at 4. Contrary to Defendant’s representation, “four justices of the Utah Supreme Court” are not “in transition.” *Id.* Only one justice’s spot—Justice Hagan’s—is currently vacant. Defendant does not explain how the four other justices could not timely review his petition. The fact that S.B. 134 created two *new* positions just this year does not establish, or even suggest, that the existing four justices are incapable of managing the court’s caseload. The Court in fact continues to perform as statutorily required.

CONCLUSION

For the foregoing reasons, the Court should deny Defendant’s motion for a stay.

Dated June 6, 2026.

Utah County Attorney’s Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

CERTIFICATE OF SERVICE

I certify that on June 6, 2026, I filed the foregoing **OPPOSITION TO MOTION TO STAY PENDING INTERLOCUTORY REVIEW** through the court's electronic filing system, which served a copy on all counsel of record.

s/ Christopher D. Ballard
Christopher D. Ballard